SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 11, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling, in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video.** Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: https://santaclara.courts.ca.gov/online-services/remote-hearings. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court. (**Local Rule 5)**.** If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to https://reservations.scscourt.org or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:
https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINES 1 & 7	23CV414045	Yesenia Zavaleta vs Volkswagen Group of America, Inc. et al	**Motion for Attorney's Fees and Enhancer (Line # 1) and Motion to Strike Costs (Line #7);** Scroll down to Line 1 for Tentative Ruling on Lines 1 and 7.
LINE 2	24CV440065	LVNV Funding LLC vs Sairoop Dasaraju	**Motion to Enter Judgment Pursuant to Default** Scroll down to Line 2 for Tentative Ruling.
LINE 3	24CV451853	Douglas Gabriel vs Donna Cutuli	**Motion to Deposit Bond Amount; Cancel; and Exonerate Bond; Discharge Liability; Attorney's Fees and Cost; and Dismissal** Scroll down to Line 3 for Tentative Ruling.
LINES 4-5	25CV457823	Joey Mowry vs Daljeet Sagoo	**Motion to Compel (Line # 4) and Motion: Admissions Deem Admitted (Line # 5)** OFF CALENDAR. On August 3, 2026, Plaintiff/moving party withdrew the motions and filed a dismissal of the entire action with prejudice.
LINE 6	25CV468852	Arthur Hearn vs Ford Motor Company et al.	**Petition to Compel Arbitration** Scroll down to Line 6 for Tentative Ruling.
LINE --	25CV478112	Katherine Zulliger et al vs Ford Motor Company et al.	**Demurrer** VACATED. On June 9, 2026, the moving party WITHDREW the demurrer.

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9:01 A.M.			
LINE 1	26CV493370	Emmanuel Haro vs Albertson's LLC	**Motion to Withdraw as Attorney** Parties to appear.

9:00 A.M.

Calendar Lines # 1 & 7

Case Name Yesenia Zavaleta vs Volkswagen Group of America, Inc. et al

Case No. 23CV414045

Motion for Attorney's Fees and Enhancer (Line # 1) and Motion to Strike Costs (Line #7)
Before the Court is the Plaintiff's Motion for Attorney's Fees and Cost (Line # 1) and Defendant Volkswagen's Motion to Strike Cost (Line # 7). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

LINE # 1: MOTION FOR ATTORNEY'S FEES AND COST

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a Complaint under the Song-Beverely Act that was filed on December 12, 2022 regarding Plaintiff Yesenia Zavaleta's ("Zavaleta') 2018 Audi A5 vehicle, vehicle identification number WAUTNAF56JA000598 (Compliant and Declaration of Kevin Jacobson, ¶ 38). The case was transferred from the Superior Court of the State of California, County of San Francisco. The parties filed a notice of settlement on July 9, 2025, as on July 3, 2025, Plaintiff Zavaleta accepted the defense offer to compromise under Code of Civil Procedure section 998. (Exhibit A of Declaration of Sivasangary).

B. RELEVANT PROCEDURAL BACKGROUND

Before the court is Plaintiff Zavaleta's motion for attorney's fees, costs and enhancer that was filed on November 2, 2026. The motion was accompanied by a proof of service indicating electronic mail service to defense counsel on November 24, 2025.

Defendant Volkswagen Group of America, Inc. ("Volkswagen") filed an opposition paper on July 22, 2026.

The Court has carefully reviewed the following: Plaintiff's notice of motion and memorandum of points and authorities (totaling 23 pages), Declaration of Kevin Jacobson and attached Exhibits 1-16 (totaling 107 pages); Defendant's opposition (total 13 pages); Declaration of Oviya Sivasangaray and attached Exhibits A-G in support of defense's opposition (totaling 101 pages); Reply brief (totaling 12 pages); supplemental Declaration of Kevin Jacobson and attached Exhibits 1-6 (totaling 54 pages); memorandum of costs filed on November 7, 2025 (totaling 29 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

A. ATTORNEY'S FEES AND COST

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (*See also,* Civ. Code § 1717(a)). "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178).

The Song-Beverly Act provides, "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794(d)).

section 1033.5(a)(1). (2) the deposition costs for logistics, processing and electronic files for video recording and transcription for the deposition of defendant's person most knowledgeable Joseph Kanyak dated December 13, 2024 is reasonable and necessary given the type of case under the Song-Beverly Act. Further the second cost for the deposition of plaintiff dated June 6, 2025 is warranted and reasonable. The Court finds this Cost reasonable and recoverable under Code of Civil Procedure section 1033.5(a)(3)(A). (3) The Court finds subpoena notices as a reasonable for preparation of the case under section (a)(4). (4) the other costs for courtesy copies and remote appearance are recoverable under section (a)(1), (14),(15), and (16). Based on the foregoing, the Court will award the costs requested.

IV. CONCLUSION

Based on the foregoing, the Defendant's motion to tax cost is DENIED and costs are awarded in the amount of $6,431.12.

The Court ORDERS that upon proof that the defendant paid $5,000.00 in fees and cost, that amount is to be offset in light of these motions for fees and costs to preclude double recovery for fees and motions.

The Court will prepare the formal Order.

Calendar Line # 2

Case Name LVNV Funding LLC vs Sairoop Dasaraju

Case No. 24CV44065

Motion to Enter Judgment Pursuant to Default

I. BACKGROUND

Before the court is a collections case stemming from Plaintiff LVNV Funding LLC ("LVNV") May 29, 2024 Complaint alleging two causes of actions, including breach of contract and money lent, paid or expended against Defendant Sairoop Dasaraju ("Dasaraju"). LVNV acquired the original loan from WebBank and now stands as the debt collector. Defendant Dasaraju filed an answer on September 23, 2024. On October 24, 2024, the parties filed a notice of settlement.

On January 22, 2026, Plaintiff LVNV filed this motion to enter judgment pursuant to the defendant's default under settlement and release agreement under Code of Civil Procedure section 664.6. The motion was accompanied by a proof of service indicating mail service to the debtor/Defendant Dasaraju on that same date.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the moving papers, including the notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 3 pages); Declaration of Spencer Penuela and attached Exhibits 1-3 (totaling 14 pages); proof of service and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 664.6: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6).

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37). Accordingly, "parties" under section 664.6 means the litigants themselves, not their attorneys. (*Levy v. Superior Court* (1995) 10 Cal.4th 578, 586 (holding "we conclude that the term 'parties' as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.")). Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985).

"Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (*Weddington Prods., Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809). When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (*Id*.) The court may not "create the material terms of a settlement," and must instead decide on what terms the parties agreed upon. (*Id*.; *Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1460; *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565-566). "In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone." (*Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994).

III. ANALYSIS

Here, Plaintiff LVNV asserts that the parties entered into a settlement agreement pursuant to Code of Civil Procedure section 664.6 on October 2, 2024. (Exhibit 1 attached to Declaration of Penuela). The Plaintiff filed a notice of settlement. (Exhibit 2 attached to Declaration of Penuela). The total settlement agreement was for Defendant Dasaraju to pay Plaintiff $6,325.05 for the account balance. (Declaration of Penuela ¶ 8). Under the stipulation, the defendant should have paid $3,000.00, but only rendered payments of $400.00. (*Id.,* ¶6). The agreement also addressed that failure to comply with the payment schedule may result in a default. (Exhibit 1 attached to Declaration of Penuela). The written settlement agreement indicated the total amount, scope, and payment terms of the settlement. The settlement agreement was signed by all of the parties to the agreement and filed with the Court. (*Id.*). On November 24, 2025, Plaintiff sent the defendant a letter seeking payment of the balance and reiterated the terms of the agreement. (Exhibit 3 attached to Declaration of Penuela). Thus, Plaintiff has met its burden.

Plaintiff seeks damages of $6,325.05, which is the agreed account balance amount from the settlement and the amount stated in its Complaint with a $400.00 credit for a total outstanding principal of $5,925.05. (*Id.*). (Declaration of Penuela ¶ 8). Plaintiff's seeks costs in the amount of $387.70 compromised of the following: $225.00 filing and motion fees, $5.20 for E-filing, $147.10 for service processing, and $10.40 in E-filing. (*Id.*). In total, Plaintiff seeks $6,312.75. (*Id.*).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of

Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter judgment in favor of Plaintiff in the amount of $6,312.75 against Defendant Dasaraju. The Court will prepare the Order.

Calendar Line # 3

Case Name Douglas Gabriel vs Donna Cutuli

Case No. 24CV451853

Motion to Deposit Bond Amount; Cancel and Exonerate Bond; Discharge Liability; Attorney's Fees and Cost; and Dismissal

I. BACKGROUND

This construction defect breach of contract case stems from Plaintiff/Cross-Defendant Douglas Gabriel ("Gabriel") filing a Complaint on November 18, 2024 alleging five causes of actions concerning defects on remodeling work performed at 1942 Abinante Lane, San Jose, California 95124 ("Subject Property."). (Complaint). On May 6, 2025, Plaintiff filed a First Amended Complaint. Defendant/Cross Complainant Donna Cutuli ("Cutuli") filed a Cross-Complaint was filed against Cross Defendant DNG Builders Group LLC ("DNG"). Cross-Complainant alleges that Defendant The North River Insurance Company ("North River") are liable to Cutuli in the full amount of a $25,000.00 bond. Cross Defendant DNG, the bond principal disputes the Cross-Complainant's claims. North River issued a contractor' licensing bond in the amount of $25,000.00 (No. 04- CF622534)("Bond"), effective October 4, 2023, with a cancellation date of September 4, 2025 (Declaration of Clair Nail; Exhibit 1).

On January 5, 2026, Defendant Cutuli filed a notice of entry of judgment.

On February 13, 2026, Defendant North River filed this motion to deposition bond amount; cancel and exonerate bond; discharge liability; and for attorney fees and cost; and to be dismissed. The motion was accompanied by a proof of service indicating electronic mail service the plaintiff's counsel and parties on February 12, 2026. Prior to filing the motion, North River met-and-conferred with Cross-Defendant, bond principal, and counsel for all parties about entering a stipulation rather than incurring time and cost for this present motion. Although Cross-Complainant agreed, North River did not receive a response from the bond principal.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

On February 27, 2026, Defendant Cutuli filed a notice of non-opposition of the North River's motion.

The Court has carefully reviewed the moving papers, notice and memorandum of points and authorities, and Declaration of Andrew Haas (totaling 11 pages); Declaration of Clarisa Nail and attached Exhibit 1; Defendant Cutuli's notice of non-opposition (totaling 2 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 386.5 provides: